

2:00 PM

LINE 2

24-CIV-00391

CHRISTIAN CRUZ VS BAY AREA PL SERVICES, ET AL.

CHRISTIAN CRUZ
SALUSTIANO RIBIERO

JUSTIN LO
SAM G SHERMAN

MOTION FOR AN ORDER APPROVING SETTLEMENT OF CLAIMS BROUGHT PURSUANT TO THE PRIVATE GENERAL ACT OF 2004, AWARDING ATTORNEYS' FEES, COSTS, AND REIMBURSEMENT OF SETTLEMENT ADMINISTRATION EXPENSES

TENTATIVE RULING:

The court GRANTS plaintiff Christian Cruz's (Plaintiff) Motion for Approval of PAGA (Private Attorney General Act) Settlement Agreement.

This Court denied Plaintiff's previous motion for PAGA approval based on several issues which precluded the Court from determining whether the settlement was a fair and reasonable compromise of claims and the court had questions about the attorneys' fees.

According to the motion, it is estimated that there are approximately 172 aggrieved employees who worked approximately 3,309 pay periods. The proposed settlement amount is \$130,000. The settlement will provide a payment of \$57,291.41 to the California Labor and Workforce Development Agency (i.e., 75% of the \$76,388.55 PAGA Penalties Fund). The remaining \$19,097.14 shall be distributed amongst the aggrieved employees.

In ruling on class action and PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."] (*Moniz*); see *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 (*Kullar*) ["The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement."]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

In reviewing a PAGA settlement, the trial court "should evaluate [it] to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." (*Moniz, supra*, 72 Cal.App.5th at p. 77.) The court is vested with broad discretion in making that determination. (*Id.* at p. 76.) In ascertaining the fairness of a PAGA settlement, the trial court may consider many of the same factors used to evaluate the fairness of class action settlements, "including the strength of the plaintiffs' case, the risk, the stage of the proceeding, the complexity and likely

duration of further litigation, and the settlement amount.” (*Id.* at p. 77; see *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801 (*Dunk*) [discussing that in class actions, courts look at the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, amount offered in settlement, extent of discovery completed and the stage of the proceedings, experience and views of counsel and the reaction of the class members to the proposed settlement.].) The list of factors is not exhaustive and “should be tailored to each case.” (*Dunk, supra*, at p. 1801.) According to the *Dunk* court, “a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Id.* at p. 1801.)

Since the aggrieved parties do not have the right to object to the settlement because the action is brought on behalf of the state and the aggrieved employees have no personal claims (see *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 81; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 547, fn. 4), the factor of the number of objectors is not relevant in a PAGA action. However, plaintiffs were required and did provide notice to the LWDA, who did not object to the settlement.

The Court finds that the PAGA settlement is fair, reasonable, and adequate in view of PAGA’s purposes. The Court also approves the notice. Plaintiff was represented by Work Lawyers, PC. Attorneys Justin Lo and May To of Work Lawyers, PC provided declarations describing their firm’s experience and their qualifications to serve as counsel in this PAGA action. (Lo Dec., filed Oct. 7, 2025, ¶¶ 2-5 (“Oct. 7 Lo Dec.”); To Dec., filed Oct. 7, 2025, ¶¶ 6-7.) While the parties did not use the assistance of a mediator, Plaintiff’s Counsel has adequately demonstrated that he weighed the strengths and weaknesses of the PAGA claims, estimated damages with the assistance of an expert, and properly discounted the theoretical damages based on the risks in this case. Plaintiff’s Counsel Justin Lo has now provided detailed information as to the strengths and weaknesses of each claim and explained how he and an expert estimated Defendants’ theoretical exposure as to each claim. (Lo Dec., ¶¶ 3-15.) All together, the claims result in maximum estimated damages of \$1,634,462.00. Lo discusses his analysis for why counsel made certain reductions and discusses the risks of litigation. The Court finds that the settlement is reasonable.

Plaintiff has provided notice to the Labor Workforce Development Agency (LWDA) of the settlement as required by Labor Code section 2699, subdivision (s)(2)). (Oct. 7 Lo Dec., Ex. C.)

The Court finds Phoenix Class Action Administration Solutions (“Phoenix”) is an experienced third-party claims administrator (Oct. 7 Lo Dec., Ex. F) and approves its retention. The Court finds a reimbursement of \$4,000 to Phoenix reasonable and necessary.

The Court grants attorneys’ fees of \$35,155, which is Plaintiff’s Counsel’s lodestar, plus the requested multiplier of 1.23 for a total award of \$43,329.00, which is an award of 33 1/3% of the gross recovery.

While plaintiff's counsel provides information about its lodestar, since it worked on a contingency basis, the court first analyzes the requested fees, which are 33 1/3 % of the gross recovery as the percentage being awarded for attorneys' fees. This 33 1/3% contingency fee is common for class actions. (See, e.g., In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 506 ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 545 [fee awards in class actions average about one-third of recovery]; *Chavez v. Netflix* (2008) 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits].)

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*), the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. The Supreme Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.)

The Court performs a lodestar cross-check, which confirms the reasonableness of the fees.

The Court finds the hourly rate and time spent reasonable. Lo has an hourly rate of \$750, which he states has been approved in wage and hour litigation in state court. (Lo Decl. filed Oct. 10, 2025, ¶¶ 27). He has been an attorney since 2011 and specializes in litigation with an emphasis in employment litigation. (*Id.*, ¶¶ 2-5.) May T. Ito, the other attorney who worked on the case, has an hourly rate of \$600.00 per hour and has been an attorney for about ten years. (To Decl., filed Oct. 7, 2025, ¶¶ 5, 6.) She has experience in employment litigation and uses the Laffey Matrix to justify her hourly rate, which Matrix has an hourly rate higher than the one she is requesting. (*Id.*, ¶¶ 6-8.) Neither attorney discusses the reasonable hourly rate for San Mateo County where this case is venued. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) This Court may use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 ["The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value."]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 ["The trial court acted well within its discretion in using 'the prevailing market value in the community for similar legal services' relying on its personal knowledge and familiarity with the area legal services, as the 'touchstone' for determination" of the reasonable hourly rates.]" (citations omitted)].) This Court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The Court finds the hourly rates reasonable for this type of case in this county. The Court also relies on the Laffey Matrix, www.laffeymatrix.com/see/html. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702 [court can use Laffey Matrix for reasonable hourly rate].)

The Court find the work performed reasonable and justified. The Court has reviewed Plaintiff's Counsel's billing records and finds that counsel pursued the matter efficiently and delegated tasks to a paralegal or junior attorney where appropriate.

The Court finds the requested multiplier appropriate based upon the contingent risk. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1128.) Plaintiff's counsel is adequate to represent the aggrieved parties and the LWDA.

The Court awards the requested costs of \$6,282.45 and finds them reasonable and necessary for the litigation.

The court notes that the Court's highlighted a needed change of "Defendants expressly denys" to "Defendants expressly deny," Plaintiff's Counsel edited the sentence to read, "Defendants expressly denies." The typo should be corrected.

The proposed order should be updated to reflect this ruling.

Plaintiff's counsel shall email Department 4 by 11:00 a.m. on July 14, 2026 with a proposed date for the compliance hearing, a Tuesday at 2:00 p.m. with a report due five court days before the hearing.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

24-CIV-05915

COUNTY OF SAN MATEO VS. JOHN ANTHONY DE LEON, ET AL.

COUNTY OF SAN MATEO
JOHN ANTHONY DE LEON

JESUS PEREDA
MIKHAIL MDINARADZE

PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES TO FORM INTERROGATORIES, SET ONE AND FOR SANCTIONS

TENTATIVE RULING:

On June 23, 2026, this court heard two discovery motions brought by plaintiff County of San Mateo against defendant Encore Textile Services, Inc. (Encore) and denied both motions. The court noted that there were two motions on calendar for July 14, 2026 and encouraged the parties to informally resolve the dispute and vacate the hearings. The hearings remain on calendar although unlike the previous motions, defendant has failed to file any opposition and there is no reply.

Although the court pointed out in its June 22, 2026 tentative ruling that plaintiff has used the incorrect party title for Encore in its caption referring to it as a plaintiff. Additionally, the court informed plaintiff that it referred to compelling Encore "to respond to Defendant's Special Interrogatories, Set One." These mistakes were not corrected and the caption and first paragraph of the notice for the motion to compel form interrogatories and the request for production of documents, set one makes the same mistake. Once again, the court infers that plaintiff means that it is seeking to compel responses to plaintiff's form interrogatories. Technically, the court cannot order responses to plaintiff's requests since the notice requests an order on defendant's requests.

Additionally in the notice of motion, plaintiff put the date of June 16, 2026 as the hearing date, but the clerk's office changed the hearing date to July 14, 2026. The court file shows a proof of service filed May 15, 2026 of the motion showing service of the motion on defendant on May 15, 2026. Thus, based upon the change of hearing date by the clerk, plaintiff could not have provided on May 15, 2026 proper notice of the June 23, 2026 hearing to Encore. There is no amended proof of service in the court file. Therefore, Encore did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1).) This same mistake was made in the two prior motions and was pointed out to plaintiff in the prior tentative rulings. While defendant may have notice of the motions because of this court's prior tentative ruling, this notice is not the notice that the law requires. Therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 ["court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

If the court was to consider the motion on its merits, it would deny the motion. As the court previously pointed out in its prior tentative rulings and the same mistake is made in this motion,
